

SUPREME COURT FOR THE STATE OF NEW YORK
BRONX COUNTY

COREY UNDERWOOD

Plaintiff(s)

-against-

CITY OF NEW YORK,
P.O. CRYSTAL DIAZ, and
P.O. MICHAEL DELUNA

Defendant(s)

Index No.:

Basis of Venue:

Place of Incident

SUMMONS IN A CIVIL ACTION

To the above-named Defendants:

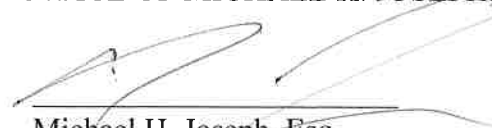
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 4, 2024

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:


Michael H. Joseph, Esq.

18 West 33rd Street, Suite 400

New York, N.Y. 10001

Tel: 212-858-0503

Email: Michael@newyorktriallawyers.org

SUPREME COURT FOR THE STATE OF NEW YORK
BRONX COUNTY

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Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, P.O. CRYSTAL DIAZ, and
P.O. MICHAEL DELUNA

Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through his undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for his complaint against Defendants states:

1. Plaintiff, Corey Underwood, is a resident of the State of New York, and Kings County.
2. At all relevant times herein, City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief P.O. Crystal Diaz is a resident of the State of New York.
4. Upon information and belief P.O. Michael DeLuna is a resident of the State of New York.
5. On or about July 7, 2023, and at all times relevant herein, P.O. Crystal Diaz was a duly sworn police officer employed by the City of New York.
6. On or about July 7, 2023, and at all times relevant herein, P.O. Crystal Diaz was acting under the color of law and acting in the course and scope of her employment with City of New York.

7. On or about July 7, 2023, and at all times relevant herein, P.O. Michael DeLuna was a duly sworn police officer employed by the City of New York.
8. On or about July 7, 2023, and at all times relevant herein, P.O. Michael DeLuna was acting under the color of law and acting in the course and scope of his employment with City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

9. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
10. On or about July 7, 2023, at approximately 8:15 P.M., Plaintiff was lawfully in the rear of the building located at 765 Courtland Avenue, in Bronx County and the State of New York.
11. At the aforesaid date, time, and place, and at all times relevant herein, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
12. At the aforesaid date, time, and place, and at all times relevant herein, Plaintiff was at a memorial event, and observed police officers acting inappropriately with members of the community that were present for the memorial event, at which point he began to film the officer's actions.
13. At the aforementioned time, date, and place, in response to Plaintiff's filming of New York City Police Department officer's actions Defendants P.O. Crystal Diaz and P.O. Michael DeLuna grabbed Plaintiff's phone, threw him to the ground, and to prevent him from filming the officer's actions and to cover up their own illegal and unconstitutional treatment of the Plaintiff, defendants unlawfully seized, searched, and falsely arrested the

Plaintiff for Harassment, Menacing, Resisting Arrest and Assault in the Second and Third Degree, even though Plaintiff had committed no acts which could even arguably constitute any of the aforementioned crimes.

14. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that Plaintiff was merely filming what was occurring in a public place when he was grabbed, violently thrown to the ground and arrested for crimes which he did not commit.
15. Defendants arrested, confined and caused Plaintiff to be deprived of his freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
16. Defendants' actions violated clearly established rights.
17. No reasonable officer in the position of Defendants P.O. Crystal Diaz and P.O. Michael DeLuna would have believed the actions of the Defendants P.O. Crystal Diaz and P.O. Michael DeLuna were objectively reasonable.
18. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.
19. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
20. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has

been commenced within one year and ninety days after the happening of the events upon which these claims are based.

21. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
22. The City of New York is vicariously liable for the acts and omissions of Defendants P.O. Crystal Diaz and P.O. Michael Deluna complained of herein, all of which were committed in the course and scope of their employment based upon respondeat superior.
23. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

24. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
25. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to his rights under the Fourth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.
26. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
27. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

COUNT III: ASSAULT AND BATTERY UNDER NEW YORK STATE LAW

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
29. On or about July 7, 2023, at approximately 8:15 p.m., Plaintiff was lawfully in rear of the building located on 765 Courtland Avenue, Bronx, in the State of New York.
30. At the aforesaid, date, time and place Defendants P.O. Crystal Diaz, and P.O. Michael DeLuna, attacked, assaulted and battered the Plaintiff and subjected him to physical force all without warning, provocation, justification or privilege to do so.
31. At all times relevant herein, Plaintiff did not consent to Defendant(s) having physical contact with her or committing the aforesaid acts.
32. By and through the foregoing, Plaintiff was assaulted, battered and harassed by the defendants.
33. The aforementioned actions of Defendants P.O. Crystal Diaz, and P.O. Michael DeLuna caused Plaintiff to sustain serious injuries to her body, the full extent of which is not known, including but not limited to facial bruises, bumps on his head, he has suffered in the past and continues to suffer great pain and mental anguish.
34. Plaintiff has in the past been, presently is, and will in the future, continue to be incapacitated from pursuing his usual duties, occupations, vocations, avocations, hobbies and/or recreational pursuits.
35. The City of New York is vicariously liable for the acts of Defendants P.O. Crystal Diaz, and P.O. Michael DeLuna.
36. Within ninety days after the occurrence complained of herein, plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more

than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

- 37. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
- 38. One or more exceptions to Article 16 of the C.P.L.R. applies.
- 39. The damages sought herein exceed the statutory maximum of all Courts of lower jurisdiction.

COUNT IV: EXCESSIVE FORCE UNDER 42 USC 1983

- 40. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
- 41. By and through the foregoing, Defendants P.O. Crystal Diaz, and P.O. Michael DeLuna intentionally subjected Plaintiff to excessive, gratuitous, unnecessary and unreasonable force, without provocation, privilege, consent, excuse or justification.
- 43. At all times relevant herein, the defendants acted jointly and in concert with each other.
- 45. The foregoing force which subjected Plaintiff to constitute a seizure of the Plaintiff.
- 45. Solely by reason of the foregoing, excessive and unreasonable force and the unlawful seizure, by, Plaintiff was caused to be deprived of his rights, liberties and privileges under the Fourth and Fourteenth Amendments to the United States Constitution, and further deprived him of his rights, liberties and privileges, and the laws of the State of New York, and Plaintiff has been caused to sustain personal injuries more fully set forth herein.

46. Defendants' actions were objectively unreasonable and shocked the conscience.
47. At all times relevant herein, Defendants lacked probable cause to believe that plaintiff posed a threat of serious physical harm to them or others.
48. Defendants are liable for compensatory, exemplary and punitive damages pursuant to 42 U.S.C. § 1983.

COUNT V: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
50. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling him to attorney's fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.
May 31, 2024

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:


Michael H. Joseph, Esq.
18 West 33rd Street, Suite 400
New York, N.Y. 10001
Tel: 212-858-0503
Email: Michael@newyorktriallawyers.org

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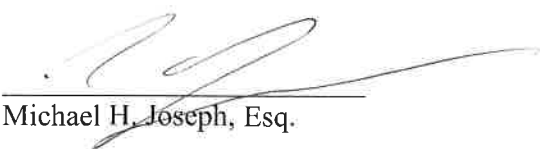
VERIFICATION

I, Michael H. Joseph, the undersigned, an attorney admitted to practice in the State of New York, state that I am member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
June 6, 2024



Michael H. Joseph, Esq.